

## 26TRCV00338 26TRCV00338

County: los-angeles

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Case Number: 26TRCV00338 Hearing Date: August 6, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

KRISTEN MARIE AUGUST

;

Plaintiff,

vs.

JOSE PEDRO CAZARES

, et al.;

Defendants.

Case

No.:

26TRCV00338

Hearing

Date:

August  
6, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT JOSE PEDRO CAZARES' MOTION TO STRIKE  
PUNITIVE DAMAGES

MOVING PARTY: Defendant, Jose Pedro Cazares

RESPONDING

PARTY: Plaintiff, Kristen Marie

August

(1)

Defendant

Jose Pedro Cazares' Motion to Strike Punitive Damages is DENIED pursuant to  
Code of Civil Procedure section 435.

The Court considers the moving papers filed on May 18, 2026, the  
opposition brief filed on July 7, 2026, and the reply brief filed on July 30,  
2026.

BACKGROUND

Factual

Background

On January 29, 2026, plaintiff Kristen Marie August ("Plaintiff") filed  
the Complaint against defendants Jose Pedro Cazares ("Defendant"), Erick  
Anthony Christopher Pittman, and DOES 1 through 100. The Complaint includes the following causes  
of action: (1) Motor Vehicle Negligence; (2) Motor Vehicle Negligence  
(Negligence – Vehicle Code § 23152(a)); (3) Motor Vehicle Negligence

(Negligence – Vehicle Code, § 23152(b)); (4) Motor Vehicle Negligence (Negligence – Vehicle Code, § 23153(a)) ; (5) Motor Vehicle Negligence (Negligence – Vehicle Code, § 23153(b)); (6) Motor Vehicle Negligence (Negligence – Vehicle Code, § 22350); and (7) Motor Vehicle Negligence.

On May 8, 2026, Defendant's counsel emailed Plaintiff's counsel to discuss Plaintiff's claim for punitive damages, contending that the existing allegations are insufficient. (Declaration of Elham R. Rabbani ("Rabbani Decl."), ¶¶ 5-6, Exh. B.) On May 10, 2026, Plaintiff's counsel responded, outlining their reasons for disagreement. (Rabbani Decl., ¶¶ 5-6, Exh. B.) On May 13, 2026, Defendant's counsel voiced that the parties appeared to be at an impasse and conveyed Defendant's intention to file a motion to strike. (Rabbani Decl., ¶ 6, Exh. B.)

On May 14, 2026, Defendant's counsel sent another meet-and-confer letter to discuss inconsistencies within the Complaint, as well as the request for attorney's fees. (Rabbani Decl., ¶¶ 7-8, Exh. C.) On the same day, both parties reached an agreement to stipulate to strike these allegations and the associated request. (Rabbani Decl., ¶¶ 7-8, Exh. C.)

On May 21, 2026, the parties filed the Joint Stipulation to Strike Portions of Complaint, which struck paragraphs 54(d), 58, and 59, along with Plaintiff's prayer for attorney's fees.

On July 15, 2026, Plaintiff filed an amendment to the Complaint, naming C2 Collective as a defendant.

## LEGAL STANDARD

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are

surplusage and may be stricken out or disregarded”). The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255, international citations omitted.) This holistic approach means that even if a particular allegation appears conclusory on its face, it will be sustained if the surrounding factual allegations in the pleading provide it with adequate support.

## MEET AND CONFER REQUIREMENT

Before motion to strike, the moving party is required to meet and confer in person, by telephone, or via video conference with the party that filed the pleading that is subject to the motion, to determine whether an agreement can be reached that would resolve the objections to be raised in the motion to strike. (Code Civ. Proc., § 435.5, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 435.5, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 435.5, subd. (a)(3).) A determination by the court that the meet and confer process was inadequate shall not be grounds to grant or deny a motion to strike. (Code Civil Proc., § 435.5, subd. (a)(4).)

On May 8, 2026, Defendant's counsel emailed Plaintiff's counsel to discuss Plaintiff's claim for punitive damages, contending that the existing allegations are insufficient. (Rabbani Decl., ¶¶ 5-6, Exh. B.) On May 10, 2026, Plaintiff's counsel responded, outlining their reasons for disagreement. (Rabbani Decl., ¶¶ 5-6, Exh. B.) On May 13, 2026, Defendant's counsel voiced that the parties appeared to be at an impasse and conveyed Defendant's intention to file a motion to strike. (Rabbani Decl., ¶ 6, Exh. B.)

Although the parties did not engage in the meet-and-confer process as required, the Court will still consider the merits of the motion to strike. An insufficient meet-and-confer process is not a valid reason to deny or grant a motion to strike.

## DISCUSSION

Defendant seeks to strike references to punitive damages and attorney's fees located in paragraphs 16 through 24, 41 through 59, as well as in the Prayer for Relief, specifically in paragraph 4. (Notice of MTS, p. 2:1-13.) However, the Court notes that Defendant's request to strike attorney's fees in paragraphs 58 and 59 has been rendered MOOT by the Joint Stipulation to Strike Portions of Complaint. (Opp., p. 7:10-18.) Consequently, the Court will focus solely on the argument related to punitive damages.

## Punitive Damages

Defendant contends that Plaintiff's factual allegations only establish a claim of negligence and argues that intoxication alone is insufficient to substantiate a claim for punitive damages. (MTS, p. 5:16-20.)

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) "It is essential that the facts and circumstances which constitute the fraud should be set out clearly, concisely, and with sufficient particularity to apprise the opposite party of what he is

called on to answer, and to enable the court to determine whether, on the facts pleaded, there is any foundation, prima facie at least, for the charge of fraud. [Citation.]” (Lehto v. Underground Constr. Co. (1977) 69 Cal.App.3d 933, 845, internal citation and quotations omitted.)

A motion to strike punitive damages is properly granted when a plaintiff does not state a prima facie claim for punitive damages. (Turman v. Turning Point of Cent. California, Inc. (2010) 191 Cal.App.4th 53, 63.)

“Malice” is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct carried on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) “Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” [Citation.]” (Lackner v. North (2006) 135 Cal.App.4th 1188, 1210.)

“As amended to include [despicable], the [Civil Code section 3294] plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (Ibid.) Despicable conduct is “conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having the character of outrage frequently associated with crime.’ ” (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.) Further, “[t]here must be evidence that defendant acted with knowledge of the probable dangerous consequences to plaintiff’s interests and deliberately failed to avoid these consequences.” (Flyer’s Body Shop Profit Sharing Plan v. Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155.)

“[T]he act of operating a motor vehicle while intoxicated may constitute an act of ‘malice’ under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences.” (Taylor v. Superior Court (1979) 24 Cal.3d 890, 892 (Taylor).) “[A] conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. [] In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he

wilfully and deliberately failed to avoid those consequences. [Citation.]”

(Id. at pp. 895-896.) “[W]hile

a history of prior arrests, convictions and mishaps may heighten the probability and foreseeability of an accident, we do not deem these aggravating factors essential prerequisites to the assessment of punitive damages in drunk driving cases.” (Id. at p. 896.) Two cases, *Taylor v. Superior Court* (1979) 24 Cal.3d 890 (“Taylor”) and *Dawes v. Superior Court* (“Dawes”) (1980) 111 Cal.App.3d 82, illustrate the specificity and gravity required to support a claim of punitive damages against an allegedly intoxicated driver.

In *Taylor*, the

allegations that a defendant was an alcoholic who was well-aware of the nature of his alcoholism, had a history of and tendency to drive a motor vehicle while intoxicated, had previously caused an accident while driving while intoxicated, had been arrested and convicted on various other occasions for driving while intoxicated, had recently completed a period of probation for a drunk driving conviction, had his probation conditioned on refraining from driving for at least 6 hours after drinking, and had additional pending criminal charges for driving under the influence were sufficient to support a claim of punitive damages. (*Taylor*, supra, 24 Cal.3d at p. 893.)

In *Dawes*, the Court of

Appeal found that the defendant's decision to “zig-zag in and out of traffic at 65 miles per hour in a crowded beach recreation area at 1:30 in the afternoon on a Sunday in June” was sufficient to support a claim for punitive damages. (*Dawes*, supra, 111 Cal.App.3d at p. 89.) The Court of Appeal disagreed with the defendant's argument “that the risk created generally by one who becomes intoxicated and decides nevertheless to drive a vehicle on the public streets is the same as the risk created by an intoxicated driver's decision to zigzag in and out of traffic at 65 miles per hour in a crowded beach recreation area at 1:30 in the afternoon on a Sunday in June. The risk of injury to others from ordinary driving while intoxicated is certainly foreseeable, but it is not necessarily probable. [However,] [t]he risk of injury to others from [defendant's] conduct under the circumstances alleged was probable.” (*Ibid.*)

Neither of these cases

establishes that courts must rely exclusively on actions preceding the incident

to determine intent or a conscious disregard for the safety of others. (Reply, pp. 2:23-3:8.) Rather, these cases illustrate that the

plaintiff is required to demonstrate the defendant's awareness of the probable dangerous consequences of their conduct, and that they willfully and deliberately failed to avoid those consequences. Nothing limits that examination to acts that occurred before the accident. Actions taken after the incident may also serve to demonstrate the defendant's conscious disregard for the safety of others.

Plaintiff alleges that on May

22, 2024, at approximately 1:30 p.m., Plaintiff was operating a vehicle on the 405 freeway amidst heavy traffic when Defendant's vehicle collided with Pittman's vehicle, resulting in a rear-end collision with Plaintiff's vehicle. (Compl., ¶¶ 9-13, 20, 33.) At the time of the incident, Defendant was

traveling at a speed of 30 miles per hour despite the congested conditions. (Compl., ¶ 33.) Immediately following the collision, Defendant

displayed a pronounced odor of alcohol, bloodshot and watery eyes, as well as slow and slurred speech. (Compl., ¶ 78.)

Defendant claimed that he had consumed three glasses of rosé wine the previous evening. (Compl., ¶ 20.)

It is alleged that Defendant

was under the influence of alcohol, with a subsequently measured blood alcohol content ("BAC") of 0.16%, which is double the legal limit, following Defendant's arrest for violating Vehicle Code section 23153, subdivision (a), concerning driving under the influence of alcohol and causing injury. (Compl., ¶¶ 27-28.) On September 24, 2024, Defendant entered a plea of nolo contendere to a charge under Vehicle Code section 23152, subdivision (b), for driving with a BAC of 0.08% or higher. (Compl., ¶ 31.)

Here, the Court finds that the

factual allegations presented are sufficient to support a finding of malice. Specifically, Defendant's conduct constitutes despicable behavior, demonstrating a conscious disregard for the probable dangerous consequences to Plaintiff and other motorists.

Plaintiff contends that

Defendant was driving with a BAC twice the legal limit while traveling at an unsafe speed during a period characterized by heavy traffic. Furthermore, Defendant informed law enforcement that he had only consumed three glasses of rosé wine the previous evening. While the Court concurs with

Defendant that it cannot "admit contentions, deductions, or conclusions of fact or law alleged" in the Complaint, it is empowered to formulate its own

deductions and conclusions based on the factual allegations presented. (Gruenberg v. Aetna Ins. Co. (1973) 9 Cal.3d 566, 572.) The factual allegations suggest that Defendant was driving in an unsafe manner while under the influence, and subsequently misled law enforcement to evade the possibility of being charged with driving under the influence. It is implausible that Defendant would have exhibited a blood alcohol level of 0.16% based solely on the consumption of three glasses of wine the previous day. This deceptive behavior indicates that Defendant recognized the wrongdoing of his actions. The Court finds these allegations sufficient to demonstrate malice.

As such, Defendant's motion to strike punitive damages is DENIED.

#### ORDERS

1) Defendant  
Jose Pedro Cazares' Motion to Strike Punitive Damages is DENIED.

2) Spectrum is ordered to give notice of the Court's ruling.

IT IS SO ORDERED.

DATED: August 6, 2026

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Tamara  
Hall

Judge  
of the Superior Court